

26PR00479 Matter of the Sally L. Rowley Trust

County: sonoma

Division: Probate

Hearing date: 2026-06-18

Motion: Petition for: 1. Construction of Trust Instrument and Determination of Ineffectiveness of Fifth Amendment (Prob. Code § 17200(b)(1), (b)(3)); 2. Determination of Trustee Status and Declaratory Relief (Prob. Code § 17200(b)(1), (b)(10)); 3. Ineffectiveness of Fifth Amendment for Failure of Delivery (Alternative) (Prob. Code § 17200(b)(1)); 4. Undue Influence – Set Aside Fifth Amendment; 5. Breach of Trust, Improper Administration, and Elder Financial Abuse (Prob. Code §§ 16000, 16040; Welf. & Inst. Code § 15610.30 et seq.); 6. Recovery of Property and Double Damages (Prob. Code §§ 850, 859); and 7. Disinheritance and Forfeiture of Beneficial Interest (Prob. Code, § 259.)

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Tentative Ruling: This matter is CONTINUED to September 18, 2026 at 9:30 a.m. in Department 12 to be heard along with the competing trust petition for instructions filed by Jefferey Rowley on June 1, 2026, and to allow the petitioner an opportunity to address the notice defect, noted below.

An amended pleading or an amendment to a pleading requires the same notice of hearing (including publication) as the pleading it amends. California Rule of Court Rule 7.53. An amended pleading was filed on the afternoon of June 15, 2026, just three days before the hearing. An amended notice of hearing was filed but there is no proof of service for that amended notice of hearing, so the petitioner has not complied with California Rule of Court Rule 7.53. Filing the amended petition three days before the hearing also deprives the Court of an opportunity to fully review the amended petition, which includes substantial attachments. The petitioner is ordered to timely serve code compliant notice of the continued hearing to all necessary people.